

Instructions for Completing the NDA Form

If you require Evans to sign an NDA in order to release your financial information for prequalification, please complete the fillable PDF on page 2 of this document and follow the steps below.

Step 1: Complete all fillable fields in the NDA form. **Step 2:** Sign and date the form (if using an electronic signature, please ensure it is applied using a verifiable e-signature tool (e.g., DocuSign or Adobe Sign)). **Step 3:** Save and email the signed NDA to prequal@evans-gc.com. **Step 4:** Evans will execute the NDA and return a fully signed copy for your records.

		NON-DISCLOSURE AGREEMENT - FINANCIALS	
This Non-Disclosure Agreement (the "Agreement") is entered into as of <u>DATE</u> by and between Evans General Contractors, LLC, a Georgia limited liability company, ("Evans"), and <u>DISCLOSING PARTY NAME</u>, a <u>STATE</u> <u>ENTITY TYPE</u> ("Disclosing Party"). Evans and the Disclosing Party may be referred to individually as a "Party" and collectively as the "Parties."			
1. Purpose The purpose of this Agreement is to facilitate the disclosure of certain financial and business information by the Disclosing Party to Evans for the purpose of allowing Evans to evaluate the financial health and viability of the Disclosing Party for evaluation of Evans awarding a contract(s) to Disclosing Party or otherwise for Evans to enter into a business transaction(s) with Disclosing Party.			
2. Definition of Confidential Information For purposes of this Agreement, "Confidential Information" means all non-public, proprietary, or sensitive information disclosed by the Disclosing Party to Evans, whether in written, oral, electronic, or other form, including but not limited to financial statements, accounting records, forecasts, business plans, and any other information that a reasonable person would consider confidential under the circumstances.			
3. Obligations of Evans Evans agrees to use the Confidential Information solely for the purpose described in Section 1 and to maintain the confidentiality of such information using at least the same degree of care that it uses to protect its own confidential information, but in no event less than reasonable care. Evans shall not disclose the Confidential Information to any third party without the prior written consent of the Disclosing Party, except to its employees, agents, or advisors who have a need to know and are bound by confidentiality obligations no less restrictive than those contained herein.			
4. Accuracy and Reliance The Disclosing Party represents and warrants that the Confidential Information provided is accurate and complete to the best of its knowledge. Evans shall be entitled to rely upon the accuracy and completeness of the Confidential Information in conducting its evaluation.			
5. Exclusions from Confidential Information Confidential information does not include information that: (a) is or becomes publicly available through no breach of this Agreement by Evans; (b) was known to Evans prior to disclosure by the Disclosing Party; (c) is disclosed to Evans by a third party lawfully and without restriction; or (d) is independently developed by Evans without use of or reference to the Disclosing Party's Confidential Information.			
6. Term This Agreement shall remain in effect for a period of three (3) years from the Effective Date, or until the Confidential Information no longer qualifies as confidential, whichever occurs first.			
7. Remedies The Parties agree that any breach of this Agreement may cause irreparable harm for which monetary damages may be inadequate. Accordingly, the Disclosing Party shall be entitled to seek injunctive or other equitable relief in the event of any breach or threatened breach of this Agreement.			
8. Miscellaneous This Agreement constitutes the entire agreement between the Parties with respect to the subject matter hereof and supersedes all prior agreements. This Agreement shall be governed by the laws of the State of Georgia. Any amendments must be in writing and signed by both Parties.			
IN WITNESS WHEREOF, the Parties have executed this Agreement as of the Effective Date.			
Evans General Contractors, LLC		<u>DISCLOSING PARTY NAME</u>	
By: _____		By: <u>SIGN</u>	
Title: _____		Title: <u>TITLE</u>	
Date: _____		Date: <u>DATE</u>	



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IN WITNESS WHEREOF, the Parties have executed this Agreement as of the Effective Date.

Evans General Contractors, LLC

By: _____

Title: _____

Date: _____

By: _____

Title: _____

Date: _____